

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHAWANA ELEAZER,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE
MOHAMMED MANIK, Shield No. 4619, DETECTIVE
NICHOLAS NORRIS, POLICE OFFICER HARKINS,
Shield No. 13542, POLICE OFFICER MALLILO, Shield
No. 13579, SERGEANT MATTHEW MONKOWSKI,
and POLICE OFFICERS JOHN DOES # 1-10 (names and
number of whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
January 24, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Detective Mohammed Manik, Shield No. 4619, Narcotics Borough Brooklyn South
Detective Nicholas Norris, Narcotics Borough Brooklyn South
Police Officer Harkins, Shield No. 13542, Narcotics Borough Brooklyn South
Police Officer Mallilo, Shield No. 13579, Narcotics Borough Brooklyn South
Sergeant Matthew Monkowski, Narcotics Borough Brooklyn South

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHAWANA ELEAZER,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, DETECTIVE
MOHAMMED MANIK, Shield No. 4619, DETECTIVE
NICHOLAS NORRIS, POLICE OFFICER HARKINS,
Shield No. 13542, POLICE OFFICER MALLILO, Shield
No. 13579, SERGEANT MATTHEW MONKOWSKI,
and POLICE OFFICERS JOHN DOES # 1-10 (names and
number of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff SHAWANA ELEAZER, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 3, 2017 at 9:30 am plaintiff lawfully exited the Kings County Hospital Center, Chemical Dependency Services located at 591 Kingston Avenue, Brooklyn, New York and got into a vehicle driven by her friend that was parked directly in front of the clinic, when defendants unlawfully stopped, questioned, frisked, searched, unlawfully handcuffed, falsely arrested/imprisoned plaintiff, without probable cause or legal justification. The officers transported plaintiff to the 71st Precinct where she was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours. Defendants unlawfully detained plaintiff for approximately 5 hours, issued her a Desk Appearance Ticket containing fabricated allegations against plaintiff, and released plaintiff from the 71st Precinct. The defendants denied plaintiff the right to due process/ fair trial and maliciously prosecuted plaintiff by fabricating allegations against plaintiff and initiating a criminal prosecution against her for a crime the officers lacked an objective factual basis to accuse her of committing. Furthermore, defendants provided the Kings County District Attorney's Office with false, incomplete and misleading descriptions of the evidence regarding their basis for arresting plaintiff and charging plaintiff with Criminal Possession of a Controlled Substance in the Seventh Degree. Plaintiff was

arraigned on July 31, 2017 and released on her own recognizance at arraignment. She was required to appear in Kings County Criminal Court to address the charges brought against her on 3 occasions, and all charges brought against plaintiff were dismissed and sealed in their entirety on April 25, 2018. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, denied plaintiff the right to due process/ right to a fair trial, and maliciously prosecuted plaintiff in violation of the laws of the State of New York and the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

1. Plaintiff SHAWANA ELEAZER is and was at all times relevant herein a resident of the State of New York.

2. Defendant DETECTIVE MOHAMMED MANIK, Shield No. 4619, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

3. Defendant DETECTIVE MOHAMMED MANIK, Shield No. 4619, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

4. Defendant DETECTIVE MOHAMMED MANIK, Shield No. 4619, is being sued in his individual and official capacity.

5. Defendant DETECTIVE NICHOLAS NORRIS, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

6. Defendant DETECTIVE NICHOLAS NORRIS, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

7. Defendant DETECTIVE NICHOLAS NORRIS, is being sued in his individual and official capacity.

8. Defendant POLICE OFFICER HARKINS, Shield No. 13542, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

9. Defendant POLICE OFFICER HARKINS, Shield No. 13542, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

10. Defendant POLICE OFFICER HARKINS, Shield No. 13542, is being sued in his individual and official capacity.

11. Defendant POLICE OFFICER MALLILO, Shield No. 13579, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

12. Defendant POLICE OFFICER MALLILO, Shield No. 13579, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

13. Defendant POLICE OFFICER MALLILO, Shield No. 13579, is being sued in his individual and official capacity.

14. Defendant SERGEANT MATTHEW MONKOWSKI, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

15. Defendant SERGEANT MATTHEW MONKOWSKI, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

16. Defendant SERGEANT MATTHEW MONKOWSKI, is being sued in his individual and official capacity

17. Defendants New York City Police Officers John Does # 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

18. Defendants Police Officers John Does # 1-10 are being sued in their individual and official capacities.

19. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

20. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

21. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

23. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about April 5, 2018.

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. By way of background, at all times relevant herein plaintiff was voluntarily enrolled in a methadone treatment program at Kings County Hospital Center's Chemical Dependency Methadone Program, an outpatient program located at 591 Kingston Avenue, Brooklyn, New York 11203.

28. At all times relevant herein plaintiff attended the methadone treatment program five times per week, as required, for medication, group and individual counseling and other services, including medical and nursing as needed.

29. Each week the medical staff at the methadone clinic provides plaintiff with a bottle containing two doses of liquid methadone and a prescription for the methadone to take with her each week so that she can take one dose of the methadone at home on each of the two days per week she does not attend the outpatient program.

30. Additionally, whenever plaintiff attends the outpatient methadone program or carries the liquid methadone with her from the program or anywhere else in public plaintiff carries a photo identification card issued to her by the Methadone program which clearly identifies her as a patient enrolled in the methadone treatment program.

31. On the morning of June 3, 2017 plaintiff lawfully received methadone treatment from the outpatient chemical dependency methadone program run by Kings County Hospital Center located at 591 Kingston Avenue, Brooklyn, New York.

32. Plaintiff was not scheduled to receive treatment from the methadone program at the Kings County Hospital Center, 591 Kingston Avenue, Brooklyn, New York. On June 4 or June 5, 2017; therefore before she left the Kings County Hospital Center on June 3, 2017 the medical staff at the methadone treatment program provided plaintiff with a bottle containing two doses of liquid methadone to take at home on June 4 and June 5, 2017.

33. On June 3, 2017 plaintiff's friend was scheduled to pick plaintiff up from Kings County Hospital Center, 591 Kingston Avenue, Brooklyn, New York at 9:30 am, after plaintiff attended the methadone program.

34. At approximately 9:30 am on June 3, 2017 plaintiff exited Kings County Hospital Center, 591 Kingston Avenue, Brooklyn, New York after she attended the methadone program, through the front door of the Kings County Hospital Center and got into her friend's vehicle which was parked on the street directly in front of 591 Kingston Avenue, Brooklyn, New York.

35. Almost immediately after plaintiff got into her friend's vehicle defendants surrounded the vehicle so that it could not drive away.

36. Defendants approached the vehicle, looked into plaintiff's purse, and asked plaintiff what the bottle of liquid was.

37. Plaintiff advised defendants that the bottle contained liquid methadone. Furthermore, plaintiff advised defendants that she was legally permitted to possess the methadone because it was prescribed to her by the medical staff at the methadone treatment program located only several feet from where the officers were standing.

38. Upon information and belief, defendants observed plaintiff exit 591 Kingston Avenue, Brooklyn, New York which is the location of the methadone program, moments before plaintiff entered the vehicle.

39. Additionally the bottle containing the methadone had plaintiff's name printed on the outside of the bottle along with the name of the clinic that prescribed the methadone to plaintiff.

40. Finally, plaintiff also showed the officers her valid photo identification card issued to her by Kings County Hospital Center, Chemical Dependency Services located at 591 Kingston Avenue, Brooklyn New York (the Methadone Program) which clearly identifies her as a patient at the methadone program who receives and requires methadone treatments daily.

41. The identification card is issued by the methadone program and has two telephone numbers for the clinic printed in large typeface on the front of the card, one number that can be called during business hours and one number that can be called outside of the program's business hours. The purpose of printing the telephone numbers on the methadone program's identification cards is so that the clinic can be called in the event plaintiff relapses or is not well, and the telephone numbers on the card are also supposed to be used in situations plaintiff found herself in the instant case.

42. Defendants did not call the telephone numbers listed on the identification card to verify whether plaintiff legally possessed the methadone because defendants already knew plaintiff legally possessed the methadone.

43. Defendants did not verify whether plaintiff legally possessed the methadone by walking into the clinic which was located less than 20 feet away from where the defendants were standing and asking the staff of the methadone clinic whether plaintiff was prescribed the liquid methadone in her possession because defendants already knew plaintiff legally possessed the methadone.

44. Defendants neglected to make any inquiries into whether plaintiff was legally permitted to possess the liquid methadone because defendants already knew plaintiff legally possessed the methadone.

45. . Instead, defendants falsely alleged, without any factual basis to make such an allegation, that plaintiff was not legally permitted to possess the methadone.

46. Any objectively reasonable individual that was present at the vehicle, located directly in front of the methadone program on June 3, 2017 at approximately 9:30 am when defendants questioned plaintiff about the liquid methadone she was carrying in her purse would have concluded that plaintiff lawfully possessed the liquid methadone because plaintiff provided defendants with clear and credible explanations regarding why plaintiff was legally permitted to possess the liquid methadone at that time.

47. Plaintiff's friend who was seated in the driver's seat of the vehicle throughout the duration of the entire interaction between plaintiff and defendants believed defendants were intentionally harassing plaintiff even though it was quite clear that plaintiff did not commit a crime or violate the law in any manner because on numerous occasions prior to this incident he routinely witnessed NYPD Officers assigned to Brooklyn South Narcotics Teams staked out outside methadone clinics waiting for the patients who just received methadone treatments to exit the clinic so that the officers could stop, threaten, harass, search and often arrest the patient.

48. . Plaintiff's friend told defendants to stop harassing him and plaintiff. He told the officers they were harassing them even though they knew neither he nor plaintiff violated the law in any way. The defendants immediately took issue with the word "harassing" that driver used to describe their behavior, and began arguing with him.

49. Then defendant Sergeant Monkowski stated to the other defendant police officers that he did not like the word "harass," and stated "we are going to lock them up." In response to defendant Sergeant Monkowski's statements, the other defendant police officers immediately and unlawfully handcuffed plaintiff and the driver, and falsely arrested/imprisoned plaintiff without probable cause or any legal justification.

50. Upon information and belief, defendants arrested plaintiff because the driver argued with defendants and accused defendants of harassing plaintiff, not because the officers had probable cause to believe plaintiff unlawfully possessed the methadone.

51. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did defendants have an objective basis to believe plaintiff violated the law or committed a crime.

52. Defendants unlawfully handcuffed plaintiff and transported her to the 71st Precinct whereat plaintiff was unlawfully searched, fingerprinted, photographed, interrogated, and detained in a holding cell for approximately 5 hours.

53. After defendants unlawfully detained plaintiff in a holding cell at the Precinct for 5 hours they issued her a Desk Appearance Ticket that falsely and without any factual basis accused plaintiff of unlawfully possessing the liquid methadone and thereby committing the crime of criminal possession of a controlled substance in the seventh degree.

54. Defendants denied plaintiff the right to due process/ right to a fair trial and maliciously prosecuted plaintiff by initiating a criminal prosecution against plaintiff by providing the Kings County DA's Office with false, misleading and incomplete information about the facts and evidence that formed the officers' factual basis for establishing probable cause to arrest and prosecute plaintiff.

55. Without any legal explanation for the omission, defendants withheld the facts from the King's County District Attorney's Office that the bottle containing the methadone that plaintiff was carrying had plaintiff's name clearly printed on the bottle, along with the name of the methadone clinic that prescribed the medication to plaintiff which suggested that the methadone was legally prescribed by the medical provider to plaintiff and that plaintiff did not commit a crime by possessing the methadone.

56. Defendants also withheld the following material undisputed facts from the DA's Office which caused the malicious prosecution of plaintiff without probable cause: (i) defendants did not inform the DA's Office or document anywhere in their paperwork that defendants stopped plaintiff and recovered the methadone from her less a minute after they witnessed plaintiff exit the methadone clinic; (ii) defendants neglected to inform the DA's Office or document on any of their paperwork that the bottle containing the methadone clearly named plaintiff as the individual to whom the methadone clinic prescribed the methadone; (iii) defendants failed to notify the DA's Office or document in their paperwork that plaintiff produced a photo identification that was issued to her by the Methadone clinic and contained two telephone numbers for the officers to call to verify whether the methadone was legally prescribed to plaintiff, but defendants refused to call the numbers on the card to verify whether the methadone was legally prescribed to plaintiff; and (iv) defendants failed to notify the DA's office that they stopped plaintiff directly in front of the methadone clinic located approximately 10-20 feet from where the officers stopped plaintiff, and defendants refused to walk 20 feet into the clinic to verify whether plaintiff was lawfully prescribed the methadone in her possession.

57. Defendants did not have an objective factual basis to accuse plaintiff of unlawfully possessing the methadone.

58. Defendants provided the DA's Office with false, misleading and/or incomplete evidence regarding their basis for arresting plaintiff and charging her with Criminal Possession of a Controlled Substance in the Seventh Degree.

59. On July 31, 2017 at approximately 9:30 am plaintiff was arraigned in Kings County Criminal Court, at which time she was charged with a crime she did not commit, based upon false and incomplete allegations made by the defendants.

60. Plaintiff was maliciously and falsely charged with Unlawful Possession of a Controlled Substance in the Seventh Degree.

61. Plaintiff was released on her own recognizance at arraignment.

62. Plaintiff was forced to appear in Kings County Criminal Court on 3 occasions and on April 25, 2018 all charges brought against plaintiff were dismissed and sealed in their entirety.

63. Plaintiff suffers from severe anxiety and the experience of being arrested and criminally prosecuted caused her to suffer from severe anxiety and emotional distress.

64. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe she committed a crime or violated the law.

65. Some of the police officer defendants observed their fellow officers violate plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent and/ or stop the unjustifiable stop, search, seizure, false arrest, abuse of process, denial of the right to due process/ fair trial, and malicious prosecution of plaintiff.

66. The unlawful search, false arrest/ imprisonment, abuse of process,, denial of the right to due process/ the right to a fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, falsely imprisoned, denied the right to due process/ right to a fair trial, and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of her right to due process under the Fifth Amendment to the Constitution of the

United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

76. Defendants lacked probable cause to search plaintiff.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Malicious Prosecution

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

81. Defendants commenced and continued a criminal proceeding against plaintiff.

82. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

83. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

84. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

85. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

87. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable

in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

90. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

91. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

92. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

94. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

96. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

97. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

98. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's

constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

99. As a result of the foregoing, plaintiff, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

105. Defendants failed to intervene to prevent the unlawful conduct described herein.

106. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and she was humiliated and subject to other physical constraints.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

108. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Shawana Eleazer demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 23, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 23, 2019

/s/
DAVID M. HAZAN